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Case Number: 26STLC02864 Hearing Date: July 16, 2026 Dept: 26

TENTATIVE RULING:

Defendants WBLM

14 Le Count Owner, LLC and GREP Atlantic, LLC's Motion to Quash Service is granted. Moving Defendants are dismissed.

Analysis:

Plaintiffs Codell Hall and Annita Taylor ("Plaintiffs")

filed the instant action for violations of the Investigative Consumer Reporting Agencies Act ("the ICRAA") against Defendants WBLM 14 Le Count Owner, LLC (Defendant WBLM 14") and GREP Atlantic, LLC ("Defendant Greystar") on April 27, 2026. On June 18, 2026, Defendants filed the instant Motion to Quash Service of Summons. Plaintiffs filed an opposition on July 2, 2026 and Defendants replied on July 9, 2026.

Discussion

Allegations

in the Complaint

Plaintiffs

applied to rent an apartment in a building that Defendants own and manage in New York called "Stella Apartments." (Compl., ¶¶1-4.) Defendant WBLM 14 is a New York limited liability company headquartered in the same state, and Defendant GREP Atlantic is a Delaware limited liability company headquartered in Texas. (Id. at ¶¶3-4.) Unnamed defendants include other persons or entities "who procured [or furnished] any investigative consumer report about any Plaintiff in connection with their housing applications." (Id. at ¶6.) Defendants

engaged a company called RentCafe, LLC, which is based in Santa Barbara, California, to build its application system. (Id. at ¶12.) The application system was built in California. (Id. at ¶13.) Defendant procured the investigative reports from RentGrow, Inc., whose officers and directors are located in Santa Barbara, California. (Id. at ¶14.) Defendants marketed their properties within California. (Id. at ¶16.)

Basis of Motion to Quash

Defendants move to quash service of the Summons and Complaint in this action pursuant to Code of Civil Procedure section 418.10, which provides: “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: To quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1), emphasis added.) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20, subd. (a)(3).)

Defendants argue that they lack sufficient minimum contacts with California for the state to exercise personal jurisdiction over them. (Citing *Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 268.) They contend that they are based outside of California and the rental application is an online tool that can be accessed anywhere. Once a defendant moves to quash, the plaintiff bears the burden to prove that sufficient minimum contacts with the forum state exist. (In re Automobile Antitrust Cases I and II (2007) 135 Cal.App.4th 100, 110.) If the plaintiff meets that burden, the defendant must show that the exercise of jurisdiction would be unreasonable. (*HealthMarkets, Inc. v. Superior Court* (2009) 171 Cal.App.4th 1160, 1168.)

Specific Jurisdiction

Plaintiff's opposition relies on specific, as opposed to general, jurisdiction to support this Court's exercise of jurisdiction over Defendants. Specific jurisdiction exists if: (1) the defendant purposefully availed himself of forum benefits; (2) the controversy is directly related to or arises out of the defendant's contacts with the forum;

and (3) the assertion of jurisdiction over the defendant is reasonable, i.e., comports with fair play and substantial justice. (*Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 472-73, 477-78.) Purposeful availment means the defendant has purposefully directed its activities at the forum state so it can expect to be subject to jurisdiction there in light of the benefits received. Plaintiffs point to two different activities by Defendants to demonstrate purposeful availment: the contracts Defendants maintained with California companies, and that they obtained consumer reports about California residents.

Regarding the second basis—obtaining consumer reports of California residents—Plaintiffs point to federal court cases where jurisdiction was established over companies that procured credit reports of the forum’s residents. Defendants reply that the cases are either non-binding or factually distinguishable. The Court agrees that the federal district court cases are, at most, persuasive. (See *People v. Koury* (1989) 214 Cal.App.3d 676, 686.)

The Court is not convinced that obtaining consumer reports of California residents is “purposeful availment.” In *Myers v. The Bennett Law Offices* (9th Cir. 2000), 238 F.3d 1068, the Ninth Circuit Court of Appeals ruled that a Utah corporation that obtained credit reports of Nevada residents was subject to jurisdiction there. (*Myers v. The Bennett Law Offices* (9th Cir. 2000), 238 F.3d 1068, 1087-1075.) In *Walden v. Fiore* (2014) 134 S.Ct. 1115, however, the United States Supreme Court ruled that a plaintiff cannot be the only connection between a defendant and a forum, thereby undermining the reasoning of *Myers*. As summarized by one District Court, “The Supreme Court and the Ninth Circuit have emphasized that a plaintiff cannot be the only connection between a defendant and a forum, and merely because the plaintiff may experience harm in the forum does not show ‘express aiming.’” (*Deveroux v. TT Mktg., Inc.*, No. 1:18-CV-487 AWI SAB, 2018 WL 3968249, at *5 (E.D. Cal. Aug. 16, 2018) (citing *Walden*, 134 U.S. 1124-25; *Axiom Foods*, 874 F.3d at 1069-70; *Picot*, 780 F.3d at 1214-15.) There must be contacts by the defendant with the forum, not merely with a forum resident. (See *id.*) The defendant’s contractual relationships, for example, must envision “continuing and wide-reaching contacts” in the forum State. (*Walden*, *supra*, 571 U.S. at 285 (citing *Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 479-480).)

Plaintiffs attempt to paint

Defendants' relationships with RentCafe, LLC and RentGrow, Inc., and Yardi Systems, Inc. as of this continuous and wide-reaching nature. The Court disagrees. First, Yardi Systems, Inc is RentCafe, LLC's and RentGrow, Inc.'s parent company, but other than that, Plaintiffs do not explain what it does or the nature of Defendants' relationship to it. Its purported location in California is irrelevant to jurisdiction.

Second, both RentCafe, LLC and RentGrow, Inc. were incorporated in Delaware, and only RentCafe, LLC lists its principal address and mailing address in Santa Barbara, California. (Opp., Ollinger Decl., Exh. 3; Reply, RJN, Exh. 1.) The Court takes judicial notice of RentGrow, Inc.'s Statement of Corporate Information, which shows that, aside from being incorporated in Delaware, RentGrow, Inc. has its principal address and mailing address in Maryland, not California. (Reply, RJN, Exh. 1; Opp., Ollinger Decl., Exh. 5.) Contacts with Rent Grow, Inc. therefore do not show continuous and wide-reaching contacts in the forum state.

Nor does RentCafe, LLC's presence in California support the requisite contacts. RentCafe LLLC's involvement in this action is limited to building the application system used by prospective renters such as Plaintiffs. Plaintiffs make no allegation directly connecting the application system to the consumer reports. (Compl., ¶¶21-24.) Plaintiff characterizes the consumer reports Defendants allegedly procured regarding prospective renters as "from California" without explaining what that means. Plaintiff's own evidence is that the reports are procured by RentGrow, Inc., which is not "from California." (See Opp., Ollinger Decl., ¶3; Reply, RJN, Exh. 1.)

The opposition also fails to articulate what forum benefits Defendants obtain by entering into a contract with the California corporation, RentCafe, LLC. For example, Plaintiffs do not contend that contracting with RentCafe, LLC gave Defendants particular access to California residents to encourage their rental applications to Stella Apartments. Plaintiffs characterize advertisements they saw on social media as "in California" but do not demonstrate how those advertisements were purposefully directed at this state.

The Court does not find persuasive the decision in *Ratliff v. Venture Express, Inc.* (N.D. Ill. 2019) 2019

WL 1125820, on which Plaintiffs rely. In

Ratliff, the Tennessee defendant challenging personal jurisdiction as to a suit filed in Illinois was determined to have “purposefully availed itself of the privilege of conducting business in Illinois by setting up a website through which Illinois residents could submit job applications; receiving Ratliff’s application through the website; seeking and obtaining his signature on consent and disclosure forms, one of which presumably authorized it to obtain his background report, see 15 U.S.C. § 1681b(b)(2)(B)(ii); moving forward with the hiring process by obtaining the HireRight report; and ultimately deciding not to hire him based in part on that report, thus triggering an obligation under the FCRA to notify him that it had not hired him based on the report and that he had rights under the FCRA to obtain a copy of the report and dispute its accuracy and completeness with HireRight.” (Ratliff, 2019 WL 1125820, at *8.) Significantly, the HireRight report which was the basis for the application rejection was prepared by an Illinois company; here, the report at issue was prepared by RentGrow, Inc., a Maryland company. The unpublished Third Circuit case. *Rogers v. Smith Volkswagen, LTD*, No. CV 19-2567, 2020 WL 1676400, (E.D. Pa. Apr. 6, 2020) is distinguishable for the same reason, as is the slip opinion in *Smith v. Ed Overcash* (E.D. Pa. Oct. 17, 2014) Case No. 14-cv-4368.

The other

cases on which Plaintiffs rely also do not support the exercise of jurisdiction in this action. *Bernard v. Atlas Score, LLC* (D. Or., Mar. 12, 2013) 2013 WL 997083 was decided in the year prior to *Walden* and relies heavily on *Myers*. (Bernard, 2013 WL 997083, *2-3.) The district court cited *Myers* for the proposition that “a defendant’s conduct is expressly aimed at the forum state when it requests a credit inquiry on a plaintiff that it knows is a resident of the forum.” (Ibid.) This reasoning was discredited in *Walden* and in *Axiom Foods, Inc. v. Acerchem Int’l, Inc.* (9th Cir. 2017) 874 F.3d 1064, 1069-70), as discussed above. In *Echols v. SafeRent Solutions LLC* (D. Ariz., Oct. 4, 2022) 2022 WL 4970312, the plaintiffs sued the consumer reporting agency that prepared their background checks, and the background checks were then provided to landlords in the forum state. (*Echols v. SafeRent Solutions LLC* (D. Ariz., Oct. 4, 2022) 2022 WL 4970312, *8-10.). The facts are not comparable. The Court fails to see how the two pages cited in *Stacker v. Intellisource, LLC*, No. 20-2581-JWB, 2021 WL 2646444, (D. Kan. June 28, 2021) support Plaintiff’s position. The finding of personal jurisdiction cited by Plaintiff is at page three; the facts recited there are very different than

here in that the Kansas plaintiff's Kansas employer obtained plaintiff's consumer report from an out-of-defendant. (Id. at *3.) The corollary entity to defendant in this case – the employer – was not sued and was not out of state. More generally, the cases Plaintiffs cites are overwhelmingly unpublished, and unpersuasive for that additional reason.

For the foregoing reasons,
Plaintiffs fail to demonstrate that the first prong of the minimum contacts analysis is satisfied.

Conclusion

Defendants WBLM

14 Le Count Owner, LLC and GREP Atlantic, LLC's Motion to Quash Service is granted. Moving Defendants are dismissed.

Judicial Assistant to give notice.